

24NWCV04835 24NWCV04835

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Case Number: 24NWCV04835 Hearing Date: July 10, 2026 Dept: P

JOEL VILLANUEVA, ET AL. v. AMAZON LOGISTICS, INC., ET AL.

CASE NO.: 24NWCV04835

HEARING: 07/10/2026 @ 9:30 AM

#16

TENTATIVE ORDER

Defendants Front Door Logistics LLC and Anthony Ray

Acuna's motion to continue trial and related deadlines is GRANTED. The Court will confer with the parties to select new trial and FSC dates.

Moving party to give notice.

Defendants Front Door Logistics LLC and Anthony Ray Acuna (Defendants) move to continue trial and all related pretrial deadlines.

Background

On December 11, 2024, Plaintiffs Joel Villanueva, Socorro Villanueva, and Isaiah Mathew Sanchez, a Minor by and through his Guardian Ad Litem Brenda Villanueva (collectively, Plaintiffs) filed this action against Defendants Amazon Logistics, Inc., Amazon Nationwide Logistics, Front Door Logistics, LLC, Anthony Ray Acuna, and Does 1 to 50. This action arises out of injuries Plaintiffs sustained on April 17, 2024 while driving westbound on

Telegraph Road when Defendant Acuna, driving a vehicle branded with the Amazon corporate logo, collided into Plaintiffs' vehicle. (Complaint, ¶¶ 36-37.) The complaint asserts three causes of action: (1) negligence, (2) negligent entrustment, and (3) negligent hiring, training, supervision, and retention.

A Final Status Conference is currently scheduled for September 3, 2026 and Trial is currently scheduled to begin on September 14, 2026.

On May 28, 2026, the Court denied Defendants' ex parte application to shorten time to hear this motion.

Legal Standard

"Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance. Circumstances that may indicate good cause include... (6) A party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts; or (7) A significant, unanticipated change in the status of the case as a result of which the case is not ready for trial." (Cal. Rules of Court, rule 3.1332(c).)

The Court, in making its determination to continue the trial should consider the following factors: (1) The proximity of the trial date; (2) Whether there was any previous continuance, extension of time, or delay of trial due to any party (3) The length of the continuance requested; (4) The unavailability of alternative means to address the problem that gave rise to the motion or application for a continuance; (5) The prejudice that parties or witnesses will suffer as a result of the continuance; (6) If the case is entitled to a preferential trial setting, the reasons for that status and whether the need for a continuance outweighs the need to avoid delay; (7) The court's calendar and the impact of granting a continuance on other pending trials; (8) Whether trial counsel is engaged in another trial; (9) Whether all parties have stipulated to a continuance; (10) Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and (11) Any other fact or circumstance relevant to the fair determination of the motion or application." (Cal. Rules of Court, rule 3.1332(d).)

Discussion

Defendants move to continue the current trial date of September 14, 2026 to a date in March of 2027 as well as the final status conference and all pre-trial deadlines.

Defendants move on the grounds that Defendants' lead trial counsel, Stacey Walker, will be unavailable for the current trial date because she will not be medically cleared to travel due to late-stage pregnancy. Ms. Walker details attempts to stipulate to a trial continuance beginning on May 11, 2026. (Walker Decl., ¶¶ 5-9.) Ms. Walker notes that the day before Plaintiff Sanchez's deposition, Plaintiffs' counsel advised that Plaintiff Sanchez would be unavailable and that all remaining depositions would need to be continued to June. (Walker Decl., ¶¶ 11-12.) Ms. Walker states that this is the first request for a trial continuance. (Walker Decl., ¶ 14.) Additionally, Ms. Walker states that counsel for Amazon does not oppose a trial continuance. (Walker Decl., ¶ 13.) Additionally, Ms. Walker states: "As lead counsel for my clients, I am responsible for trial strategy, expert coordination, discovery management, and pretrial preparation. Proceeding without me at trial would substantially prejudice defendants and risk disruption of trial proceedings. (Walker Decl., ¶ 15.)

In opposition, Plaintiffs argue that late-stage pregnancy does not constitute an excusable circumstance under California Rules of Court, rule 3.1332(c)(3). Plaintiffs argue that pregnancy is not sudden or unforeseen. Plaintiffs additionally argue that Defendants do not show why their other attorney of record, Jeffrey Y. Choi, cannot take over as trial counsel. Lastly, Plaintiffs argue that the requested continuance is long and prejudices Plaintiffs.

Here, the Court finds that Defendants establish proper grounds under California Rules of Court, rule 3.1332(c)(3) – "[t]he unavailability of trial counsel because of...other excusable circumstances." Plaintiffs do not point to authorities requiring that the "excusable circumstances" be "sudden" or "unforeseeable." (Opp., 2:20.) Moreover, as argued by Defendants in reply, Plaintiffs do not establish authorities requiring a different attorney to take over as lead counsel before considering a trial continuance. Further, the Court agrees with Defendants that Plaintiffs do not establish prejudice by mischaracterizing that this case is "is already over two years old." (Opp., 7:13.)

The Court finds that Defendants establish that a trial continuance is warranted based on the unavailability of their lead trial counsel. Moreover, other factors weigh in favor of a continuance, including that this is the first trial continuance, Defendants moved for this relief well in advance of the current trial date, and that the Amazon defendants do not oppose a trial continuance.

Defendants' motion to continue trial and related deadlines is GRANTED. The Court will confer with the parties to select new trial and FSC dates.